

25STCV16799 25STCV16799

County: los-angeles

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Case Number: 25STCV16799 Hearing Date: August 18, 2026 Dept: 224

Raab v. PACE/Stauber LLC et al.,

TENTATIVE RULING

The Motion to Compel Compliance is GRANTED.

S R Pace shall produce all documents responsive to RFP Nos. 1-8, 11, 12, 14, and 17 that are within its possession, custody, or control, in complete and unabridged form, in the form specified in the demand within 30 days.

As to any responsive document it cannot produce, the response shall comply with section 2031.230 and shall state whether the document never existed, has been destroyed, lost, misplaced, or stolen, or has never been in S R Pace's possession, custody, or control, and shall identify any person believed to have it.

Plaintiff's request for monetary sanctions is GRANTED in the amount of \$4,105. Defendant's request for sanctions is DENIED.

Motion to Compel Compliance

Plaintiff moves the Court for an order compelling Defendant S R Pace, LLC to comply with the statements of compliance in its responses to Plaintiff's Requests for Production of Documents, Set One, Nos. 1-8, 11, 12, 14, and 17, by producing within 14 days complete copies of all documents previously produced as SRP000007-87 and SRP000088-135, together with all other responsive electronically stored information it represented it was producing, in native format with metadata intact or, alternatively, in TIFF format with an accompanying DAT load file containing the metadata fields specified in the demand, on the grounds that S R Pace produced only facially incomplete fragments of the identified emails, produced no metadata in either specified form despite never having objected to the specified forms or stated an alternative form in three rounds of verified responses, and has not shown that it searched sources within its possession, custody, or control.

Evidentiary Objections

Plaintiff Mel Raab submits objections to portions of the Declarations of Beryl Weiner and Phyllis Miller filed in support of S R Pace, LLC's Opposition.

The objections are OVERRULED.

Legal Standard

A party to whom an inspection, copying, testing, or sampling demand has been directed may respond with an indication that the party will comply with the particular demand. (Code Civ. Proc., § 2031.210, subd. (a)(1).) Thereafter, if the responding party fails to permit the inspection, copying, testing, or sampling in accordance with that party's statement of compliance, the demanding party may move for an order compelling compliance. (Code Civ. Proc., § 2031.320, subd. (a).)

Discussion

Plaintiff served RFP Set One on October 31, 2025. The demand specified the form of production for ESI: native format, or single-page Group IV TIFF/JPG images with an accompanying load file and a DAT load file containing enumerated metadata fields.

SRP thereafter served three rounds of verified responses. None asserted an objection to the specified form of production or stated an alternative form. In its second supplemental responses to the requests at issue, SRP stated that, following recovery efforts after a computer failure, it had located responsive non-privileged emails bearing Bates Nos. SRP000007–87 that "are being produced concurrently herewith." However, Plaintiff contends that the subsequent production did not comply with that representation and remains facially incomplete.

SRP agreed to produce these documents, and it must now produce them. In its second supplemental responses, SRP identified responsive, non-privileged emails and represented under oath that they "are being produced concurrently herewith." That is a statement of compliance, and section 2031.220 provides that "the responding party represents that all documents in the demanded category within its possession, custody, or control, and to which no objection is made, will be included in the production." SRP cannot serve that representation and then define compliance by reference to whatever it has elected to produce.

The form of production is part of what SRP undertook, and SRP's failure across three verified responses either to object to the specified form or to state an alternative one is dispositive under section 2031.280, subdivision (c).

The motion to compel compliance is GRANTED.

Sanctions

Section 2031.320, subdivision (b) requires a monetary sanction against a party that unsuccessfully opposes a motion to compel compliance absent substantial justification. The Court does not find substantial justification, and no circumstance makes an award unjust. SRP's counter-request under sections 2023.010 and 2023.030 is denied.

However, the amount sought is substantially excessive. Plaintiff seeks more than \$23,000 for a motion presenting a narrow question on largely undisputed facts, including 16 hours of partner time at \$825 to review and revise papers principally drafted by another attorney billing 7.2 hours. The Court finds the hours claimed disproportionate to the work reasonably required and awards 3.6 hours at \$600 (\$2,160), 2 hours at \$825 (\$1,650), and expert fees of \$295 for a total of \$4,105.

Plaintiff's request for monetary sanctions is GRANTED in the amount of \$4,105. Defendant's request for sanctions is DENIED.

Conclusion

S R Pace shall produce all documents responsive to RFP Nos. 1-8, 11, 12, 14, and 17 that are within its possession, custody, or control, in complete and unabridged form, in the form specified in the demand.

As to any responsive document it cannot produce, the response shall comply with section 2031.230 and shall state whether the document never existed, has been destroyed, lost, misplaced, or stolen, or has never been in S R Pace's possession, custody, or control, and shall identify any person believed to have it.

Plaintiff's request for monetary sanctions is GRANTED in the amount of \$4,105. Defendant's request for sanctions is DENIED.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.